

10 Questions Your Attorney Hopes You Never Ask

A Free Guide from ImNotAnAttorney

We Research. You Ask.

Why This Guide Exists

You hired an attorney to defend your freedom. You're paying them thousands — maybe tens of thousands — of dollars. And right now, you probably have no idea if they're actually doing their job.

That's not your fault. The legal system wasn't designed for you to understand it. But these 10 questions will change that.

Each question is designed to do one thing: **force transparency**. A good attorney will welcome them. A bad attorney will squirm.

Either way, you'll know where you stand.

Question 1: "What is your theory of defense in my case?"

Why it matters: Every case needs a story — a framework that explains why you should win. Without one, your attorney is just reacting instead of leading.

What a good answer sounds like: "We're arguing the traffic stop was illegal because the officer lacked reasonable suspicion. If the judge agrees, every piece of evidence gathered after the stop gets thrown out."

Red flag answer: "We're going to see what they offer." That's not a defense. That's surrender.

Question 2: "Have you reviewed all of the discovery material?"

Why it matters: Discovery is every piece of evidence the prosecution has. If your attorney hasn't read it thoroughly, they're defending you blind.

Follow up with: "Can I see it?" You have the right to review the evidence being used against you.

Red flag: "You don't need to worry about that." Yes, you absolutely do.

Question 3: "What motions have you filed — or plan to file — and why?"

Why it matters: Motions are how attorneys fight. Suppression motions can throw out illegally obtained evidence. Brady motions force the prosecution to hand over evidence that helps you. If zero motions have been filed, ask why — specifically.

Ask about each one:

- Motion to Suppress (illegal search/stop)
- Motion to Compel Discovery (prosecution hiding evidence)
- Brady Motion (exculpatory evidence)
- Motion to Dismiss (insufficient evidence, procedure violations)
- Daubert/Frye Motion (unreliable expert testimony)

Red flag: "Motions won't help your case" without explaining *why* each specific motion doesn't apply.

Question 4: "What are the elements of my charges, and which one is weakest?"

Why it matters: Every charge has elements the prosecution must prove *beyond a reasonable doubt*. If they can't prove even one, they can't convict. Your attorney should know exactly which element is vulnerable.

Example: For drug possession, the prosecution must prove (1) a substance existed, (2) you knew about it, and (3) you had control over it. If you were a passenger in someone else's car, element 3 might be unprovable.

Red flag: Your attorney can't list the elements of your charges from memory.

Question 5: "What is the realistic best and worst outcome?"

Why it matters: Not the theoretical maximum sentence on paper. The *realistic* range based on your facts, your judge, and your jurisdiction. You need honest numbers to make informed decisions.

A good attorney knows:

- What this specific judge typically sentences
- What standard plea offers look like for your charges
- Whether diversion programs, drug court, or deferred adjudication apply
- The difference between what you're facing on paper vs. in reality

Red flag: Vague reassurances ("we'll get you a good deal") or scare tactics without specifics.

Question 6: "What independent investigation have you done?"

Why it matters: The only investigation most defendants get is the one conducted by the police — the same people trying to convict you. Your attorney should be doing their own work.

This might include:

- Visiting the scene
- Interviewing witnesses the police didn't talk to
- Reviewing body camera footage frame by frame
- Checking breathalyzer calibration records
- Examining the CI's (confidential informant's) reliability history

Red flag: The only evidence your attorney has looked at is what the prosecution handed them.

Question 7: "Have you spoken directly to the prosecutor about my case?"

Why it matters: Negotiation happens in conversations — not just in court appearances. Your attorney should be actively communicating with the assigned prosecutor, understanding their position, and advocating for you.

Follow up: "What is their position? Where is there flexibility?"

Red flag: Your attorney only sees the prosecutor at scheduled court dates.

Question 8: "What are the weaknesses in the prosecution's case?"

Why it matters: Every case has weaknesses. Every single one. An attorney who can't name a single vulnerability in the prosecution's case hasn't looked hard enough.

Push for specifics:

- Witness credibility issues
- Evidence admissibility problems
- Timeline gaps
- Procedural violations
- Constitutional issues with the stop, search, or interrogation

Red flag: "They have a strong case" without any further analysis.

Question 9: "If we go to trial, what's your plan?"

Why it matters: Even if you end up pleading, your attorney needs a trial strategy. The strength of your plea deal is directly tied to the prosecution's fear of losing at trial. No trial plan = no leverage = worst possible deal.

Ask about:

- What witnesses would we call?
- How would you cross-examine their key witnesses?
- What's our jury strategy?
- How long would a trial take?

Red flag: "You don't want to go to trial." Maybe not — but that should be an informed choice, not a default position.

Question 10: "What should I be doing right now to help my case?"

Why it matters: There are almost always things you can do — character reference letters, treatment programs, employment documentation, compliance records. A good attorney gives you a specific action list. A bad one says "just stay out of trouble."

How to Use These Questions

1. **Send them in advance.** Email your attorney: "I'd like to schedule a case review. Here are the topics I want to discuss." This creates a record and gives them time to prepare real answers.
 2. **Write down the answers.** Don't rely on memory. Take notes during the meeting or bring someone to listen.
 3. **Compare answers to reality.** If they say "we're filing a motion next week," check the court docket the following week. Did it happen?
 4. **Trust your instincts.** If the answers feel vague, evasive, or defensive, they probably are.
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What If the Answers Aren't Good Enough?

That's where we come in.

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